

26NWCV02119 26NWCV02119

County: los-angeles

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Case Number: 26NWCV02119 Hearing Date: September 3, 2026 Dept: P

ARTESIA PARTNERS

LLC v. SCARLETT ROSE 21 ENTERPRISES LLC

CASE NO.: 26NWCV02119

HEARING: 09/03/2026 @

9:30 AM

#9

TENTATIVE ORDER

I.

Defendant Scarlett Rose 21 Enterprises

LLC's motion to set aside default and default judgment is GRANTED. Defendant is ORDERED to file the responsive pleading attached to its motion paper within 5 days of this Order.

II.

The Court sets a Case Management

Conference for Thursday, October 15, 2026 at 9:00 AM in Dept. P.

Moving party to give notice.

Defendant Scarlett Rose 21 Enterprises LLC (Defendant) moves to set aside the default and default judgment entered against it.

Background

On June 22, 2026, Plaintiff Artesia Partners LLC (Plaintiff) filed this commercial unlawful detainer action against defendant regarding the premises located at 11660 South St., #110, Artesia, CA 90701.

On July 21, 2026, Plaintiff requested the Court enter Default as to Defendant (Default). Default was entered on the same date. On July 23, 2026, Default Judgment was entered by clerk's judgment as to possession only (Default Judgment).

On July 27, 2026, a Writ of Possession was issued.

On July 30, 2026, the Court granted Defendant's ex parte application to advance the instant hearing to today's date. The Court stayed enforcement of the Default Judgment pending the outcome of this hearing. (Order, 7/30/26.)

Legal Standard

Code of Civil Procedure section 473, subdivision (b) provides for discretionary and mandatory relief for mistake, inadvertence, surprise, or excusable neglect.

Discretionary relief is available to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) An application for discretionary relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed...and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) Mandatory relief is available "whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect...unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).)

Discussion

Defendant moves for mandatory relief from the Default and Default Judgment entered against it on the basis that they were caused by defense counsel's excusable neglect.

Defendant submits the declaration of defense counsel Gilbert Sigala (Mr. Sigala). Mr. Sigala recounts the following: Mr. Sigala represents Defendant in this action as well as a separate defendant in a separate unlawful detainer action regarding a different unit on the same premises (26NWUD01029). (Sigala Decl., ¶¶ 3-4.) Mr. Sigala tried to negotiate a global settlement with both actions while also preparing answers around June 30, 2026 to July 7, 2026. (Sigala Decl., ¶¶ 6-8.) Mr. Sigala states that he timely prepared an answer but failed to timely file it. (Sigala Decl., ¶ 10.) Specifically, Mr. Sigala explains: "Through my mistake...the deadline to file the Answer in the Restaurant Matter was incorrectly calendared as thirty (30) days after service of the Summons and Complaint rather than the shortened statutory deadline applicable to unlawful detainer proceedings." (Sigala Decl., ¶ 11.) Mr. Sigala explains that on July 22, 2026, he appeared with the defendant in the other action for a hearing and, while attempting to file Defendant's answer in this action, learned about the Default. (Sigala Decl., ¶¶ 13-14.) Then, Defendant filed the instant motion on July 29, 2026.

In opposition, Plaintiff argues that Defendant does not explain when it was served with the summons and complaint, when its response was due, when it retained counsel, or when Mr. Sigala assumed responsibility. Plaintiff argues this is relevant to understanding whether Mr. Sigala's conduct caused the Default.

Here, the Court finds that Mr. Sigala's declaration adequately addresses Plaintiff's concern because it shows that Mr. Sigala was actively working on a settlement as of June 30, 2026 and had written an answer that he was prepared to file on July 22, 2026, but for the calendaring error.

Plaintiff further argues that the answer Defendant attaches to its pleadings is incomplete because it was verified after the date Mr. Sigala stated that he had prepared the answer and does not properly identify Lily Rodriguez for verification purposes. The Court notes this defect. However, in reply, Defendant filed a revised verification explaining who Lily Rodriguez is and her authority to verify the answer on behalf of Defendant.

Based on the foregoing, the Court finds that Defendant filed

a timely application for relief as well as an attorney declaration attesting to excusable neglect as causing the Default and Default Judgment. Therefore, mandatory relief is warranted. “[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-82, citations omitted.)

Accordingly, Defendant's motion to set aside default and default judgment is GRANTED.

Defendant is ORDERED to file the responsive pleading attached to its motion paper within 5 days of this Order.

The Court sets a Case Management Conference for Thursday, October 15, 2026 at 9:00 AM in Dept. P.

Moving party to give notice.